

COLLECTION · SELLERS

Selling an inherited property

Estate — selling an inherited property with peace of mind

READ BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It offers general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. As every real estate situation is different, it is recommended that you consult the appropriate professionals before making any decision regarding a real estate transaction.

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Estate — selling an inherited property with peace of mind

Selling an inherited property blends emotions and legal steps. Between settling the estate, decisions among several heirs and the tax aspects, it's best to move forward methodically and with good support.

This guide maps out the main stages: the liquidator's role, the checks before selling, the tax issues to know, and managing decisions among heirs.

Informational content, not legal or tax advice: surround yourself with a notary and, if needed, an accountant. Each chapter ends with a lined “My notes” page.

Selling an inherited property blends law, taxation, logistics and emotions. This guide clarifies who can sell and when, how to prepare and price the property, the tax issues, decisions among several heirs, and the delicate step of emptying the house.

Goal: carry out the sale calmly, by the rules, without conflict or emotion costing you value.

CHAPTER

The liquidator's role and the prerequisites

Knowing who can sell and when.

In an estate, it's generally the liquidator (formerly “executor”) who administers the assets and carries out the sale, according to the will and the law. Certain steps must precede the sale (settling the estate, publishing documents in the register).

- Confirm who the liquidator is and their powers.
- Check the title of ownership and the registration in the Land Register.
- Understand what the will provides for the property.

In an estate, it's generally the liquidator who has the power to sell, once certain steps are completed (acceptance of the office, inventory, sometimes authorizations). Check who is authorized and what prerequisites are required BEFORE going to market, to avoid a challengeable sale.

EMILIE'S TIP

Before even thinking about price, have the notary confirm who has the power to sell and what steps must be completed. Selling too early or without the right powers creates costly blockages.

CHAPTER

Preparing the property and setting the price

Selling a property that's often old or unoccupied.

An inherited property is sometimes aging, furnished or unoccupied for a while. Prepare it like any sale: empty it, clean, fix the essentials, then set a price backed by a comparative analysis.

- Have the current market value assessed (CMA).
- Decide what to empty, repair or sell as is.
- Consider an inspection to know the real condition and avoid disputes.

An inherited property is often old, furnished or unoccupied: a cleaning, a declutter and a few targeted repairs can markedly improve the price. Set the price on a comparative analysis, not on sentimental value or the municipal assessment.

EMILIE'S TIP

Don't sell an inherited property cheap out of haste, but don't over-invest in renovations either. Light preparation and a fair price often give the best net result for the heirs.

CHAPTER

The tax issues to know

Anticipating the tax tied to the estate and the sale.

The taxation of an inherited property can be complex: depending on the case, a capital gain may be calculated from the value at death, the principal residence may qualify for an exemption, etc. The rules depend on the specific situation.

Assume nothing: an accountant or tax specialist, together with the notary, will tell you what applies and how to minimize the tax legally.

The taxation of an estate can be complex: capital gain, value at death, deadlines. A mistake can be costly. Consult a notary and an accountant to understand the implications before selling — it's an investment that avoids nasty tax surprises.

EMILIE'S TIP

*Talk to an accountant **BEFORE** selling, not after. An estate's tax decisions have to be planned: once the sale is done, some options are no longer available.*

CHAPTER

Deciding among several heirs

Managing collective decisions without conflict.

When several heirs are involved, the decisions (to sell or not, at what price, which offers to accept) must be made together. Disagreements are frequent and emotionally charged.

- Clarify early who decides what (often the liquidator, in consultation).
- Rely on facts (CMA, the notary's opinion) to depersonalize the decisions.
- Communicate regularly to avoid misunderstandings.

When several heirs are involved, the decisions (to sell or not, price, timeline) must be made together. Clarify the decision-making method and the split early; a neutral intermediary (notary, broker) helps keep things on track without emotion blocking the sale.

EMILIE'S TIP

Base decisions on neutral facts (price analysis, the notary's opinion) rather than emotions. A professional third party often helps heirs reach an agreement calmly.

CHAPTER

Emptying the house: practical and emotional aspects

Handling the contents before the sale.

Before selling an inherited property, you often have to **empty it** — a step as charged with emotion as with logistics.

- **Sort:** keep, give away, sell, throw out.
- Allow **time** and, if possible, split the task among heirs.
- Document items of **value** (estate).
- Consider an **estate sale** or specialized services.

A decluttered, clean house shows better and sells more easily.

Emptying the house is a step as charged with emotion as with logistics: sort (keep, give away, sell, throw out), document valuable items and, if needed, get help. Don't rush the sorting, but don't let the sale drag on for months either.

EMILIE'S TIP

Don't rush the sorting in the heat of emotion, but don't let it delay the sale for months either. Set yourself a realistic schedule and, if needed, get help.

IN PRACTICE

Action plan

Your next steps, concretely.

This week

1. Confirm the liquidator and the powers of sale with the notary.
2. Have the market value assessed (CMA).

Within 30 days

1. Consult an accountant on the tax impacts.
2. Prepare the property and frame the decisions among heirs.

Next

1. Go to market with support suited to an estate.

First steps

1. Confirm who the liquidator is and what prerequisites are required.
2. Consult a notary/accountant on the taxation before selling.

REFERENCES

Resources & glossary

- Liquidator: the person who administers the estate and carries out the sale.
 - Land Register: the public register of real estate rights.
 - CMA: comparative market analysis to set the current value.
 - Capital gain: possible tax based on the value at death and the use of the property.
 - Principal residence exemption: possible tax relief depending on the situation.
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- Liquidator: the person authorized to administer and sell the estate's assets.
 - Capital gain: taxable profit realized on the sale, based on the value at death.
 - Estate co-ownership: property held jointly by the heirs.
 - Comparative analysis: an objective basis for setting the price.
 - Estate sale: liquidating the contents before going to market.

GOING FURTHER

Quiz — test your knowledge

1. In an estate, the sale is generally conducted by:

- A) Any heir
- B) The liquidator
- C) The buyer
- D) The municipality

2. Before selling, you must first:

- A) Set the price only
- B) Confirm the powers of sale and the legal steps
- C) Move out
- D) Nothing

3. The price is set:

- A) At random
- B) From a comparative analysis
- C) On the municipal assessment
- D) On the deceased's purchase price

4. For taxation, you should consult an accountant:

- A) After the sale
- B) Before the sale
- C) Never
- D) Only in case of a dispute

5. A principal residence can sometimes benefit from:

- A) No rule
- B) An exemption on the capital gain
- C) A double tax
- D) Nothing

6. With several heirs, decisions must:

- A) Be made alone
- B) Be made together, on facts
- C) Be imposed
- D) Be avoided

7. To depersonalize decisions, you rely on:

- A) Emotions
- B) The CMA and the notary's opinion
- C) Chance
- D) Rumours

8. Over-renovating an inherited property is:

- A) Always profitable
- B) Often pointless; light preparation + a fair price
- C) Mandatory
- D) Forbidden

Answer key

- 1. **B** — The liquidator administers and sells (ch. 1).
- 2. **B** — The notary confirms who can sell (ch. 1).
- 3. **B** — The CMA gives the current value (ch. 2).
- 4. **B** — Tax decisions have to be planned (ch. 3).
- 5. **B** — Depending on the situation (ch. 3).
- 6. **B** — Consultation and neutral facts (ch. 4).
- 7. **B** — Neutral facts help reach agreement (ch. 4).
- 8. **B** — You aim for the best net result (ch. 2).

Signé PAR Em

*Thank you for reading. May this guide help you
decide with confidence, with all the information
in hand.*

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